PLSC 197 / SODA 197N: Social Data, Technology, and Artificial Intelligence

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The Question

As a society, how do we weigh whether the potential gains in AI capability from training on chat data are worth the considerable loss of consumer privacy?

Regulatory Response: The U.S. 🇺🇸

Generally:

- Regulation is sector-specific (FTC, FCC, USPTO, immigration, etc.)
- Example (Lord 2025): WIPO
  - Copyright requires human authorship
  - = "meaningful creative control" (e.g. Randy Travis)
  - Focus on *ownership* / *attribution*
- State + federal regulations co-exist (e.g., California's CCPA)
- → "patchwork" across sectors / states

Regulatory Response: The E.U. 🇪🇺

The EU AI Act (August 2024)

- Comprehensive (*all* AI systems, even if outside the EU)
- Places systems into *risk tiers*:
  - Unacceptable risk → banned
  - High risk → security + transparency + quality regulations
  - Limited risk → transparency only
  - Minimal risk → no regulation
- Concerns (Vieth-Ditlmann 2025):
  - Developers *self-classify* into risk tiers
  - Military + law enforcement + immigration authorities / systems are largely *exempt*
  - Enforcement in August 2026 + not retroactive

The GDPR

The EU General Data Protection Regulation:

- Enacted 2016; in effect 2018
- Scope: all EU-operating platforms
- Core user rights:
  - Data collection (what and why)
  - Data access
  - Data deletion
  - Data portability
  - Object to uses
- Imposes obligations on organizations / platforms...
- Enforcement:
  - Fines up to €20 million or 4% of global annual turnover, whichever is higher
  - Mechanism: National Data Protection Authorities in each EU member state



The GDPR and Meta (2023)

The ruling:

- GDPR requires that when personal data is transferred outside the EU, the destination country must provide equivalent privacy protections.
- The U.S. does not...
- May 2023: Ireland's Data Protection Commission fined Meta €1.2 billion + suspend data transfers EU $\rightarrow$ U.S.
- Result: Revised "Data Privacy Framework" for transatlantic data transfers

GDPR Enforcement

